

26CHCV00137 26CHCV00137

County: los-angeles

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APPLICATION FOR
WRIT OF POSSESSION

Application filed on March 16, 2026.

MOVING PARTY: Plaintiff Ally Bank, a corporation

RESPONDING PARTY: Defendants United Global Logistics LLC, a
limited liability company, and Rakesh K. Talwar aka Rakesh Talwar, an
individual

NOTICE: OK

RELIEF REQUESTED: Issuance of writ of possession.

RULING: Granted.

BACKGROUND

On November 28, 2022, Defendant United Global Logistics LLC
entered into a written Retail Installment Contract and Security Agreement with
Premier Truck – Salt Lake City in connection with the purchase and financing of

one 2021 Freightliner Cascadia 126, Vehicle Identification No. 3AKJHHDR3MSLH9142. Defendant Rakesh K. Talwar executed a Third Party Guaranty. The Contract required 60 monthly payments of \$2,851.28 beginning January 12, 2023. (Nunez Decl., ¶ 6, Ex. A.)

Premier Truck – Salt Lake City assigned the Contract to Plaintiff on November 28, 2022. The Utah Certificate of Title identifies United Global Logistics LLC as the owner and Plaintiff as lienholder. (Nunez Decl., ¶¶ 6-7, Exs. A, B.)

United Global Logistics LLC defaulted under the Contract by failing to make the payment of \$2,851.28 due May 12, 2025, or the regular monthly payments of \$2,851.28 due thereafter. (Nunez Decl., ¶ 9.) The Contract permits Plaintiff to take immediate possession of the Vehicle upon default. (Nunez Decl., ¶ 8, Ex. A.) Plaintiff demanded surrender of the Vehicle, which Defendants failed to honor. (Nunez Decl., ¶¶ 9, 11.) As of November 20, 2025, the outstanding balance under the Contract was \$84,164.43. (Nunez Decl., ¶ 9.)

Plaintiff now seeks a writ of possession against Defendants United Global Logistics LLC and Rakesh K. Talwar. No timely opposition was filed.

LEGAL STANDARD

A plaintiff may apply to the court for a writ of possession upon filing of the complaint in a civil action or at any time thereafter. (Code Civ. Proc., § 512.010(a).)

“[An] application [for a writ of possession] shall be executed under oath and shall include all of the following: (1) A showing of the basis of the plaintiff’s claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff’s claim is a written instrument, a copy of the instrument shall be attached. (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention. (3) A particular description of the property and a statement of its value. (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to

take possession, a showing that there is probable cause to believe that such property is located there. (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.” (Id., subd. (b).)

A writ of possession may issue if, after hearing, the applicant establishes the probable validity of its claim to possession of the property at issue and satisfies the undertaking requirements of Code of Civil Procedure section 515.010. (Code Civ. Proc., § 512.060.)

Whether an applicant’s claim is probably valid will depend on the applicable substantive violation for which the plaintiff is pursuing the writ. (See *Englert v. IVAC Corp.* (1979) 92 Cal.App.3d 178, 184.)

DISCUSSION

Plaintiff has met all the statutory requirements.

First, the declaration of Cristian Nunez, Plaintiff’s Authorized Representative, declares that on November 28, 2022, Defendant United Global Logistics LLC executed a written Retail Installment Contract and Security Agreement in connection with the purchase and financing of a 2021 Freightliner Cascadia 126, and Defendant Rakesh K. Talwar executed a Third Party Guaranty. The Contract obligated United Global Logistics LLC to make 60 monthly payments of \$2,851.28 beginning January 12, 2023. Premier Truck – Salt Lake City assigned the Contract to Plaintiff on the Contract date, and the Utah Certificate of Title reflects Plaintiff’s lien on the Vehicle. (Nunez Decl., ¶¶ 6-7, Exs. A, B.)

United Global Logistics LLC defaulted by failing to make the payment of \$2,851.28 due May 12, 2025, or any of the regular monthly payments of \$2,851.28 due thereafter. (Nunez Decl., ¶ 9.) The Contract expressly provides that upon default, Plaintiff may take immediate possession of the Vehicle. (Nunez Decl., ¶ 8, Ex. A.) Accordingly, Plaintiff has demonstrated its secured interest in the Vehicle and an immediate contractual right to possession upon default.

Second, United Global Logistics LLC came into possession of the Vehicle upon delivery. Despite demand from Plaintiff, Defendants have

refused to surrender possession. (Nunez Decl., ¶¶ 9, 11.) These facts establish that Defendants are wrongfully detaining the Vehicle within the meaning of Code of Civil Procedure section 512.010(b)(2).

Third, Plaintiff provided a specific description of the property, "2021 Freightliner Cascadia 126, motor vehicle, Vehicle Identification Number 3AKJHHDR3MSLH9142," together with a valuation of \$36,650.00. (Nunez Decl., ¶ 10, Ex. C; Application, item 4.) Plaintiff also provided information concerning the Vehicle's location, based on its best knowledge and belief, as required by section 512.010(b)(4). Plaintiff's records reflect that United Global Logistics LLC maintains its principal place of business at 27213 Banuelo Avenue, Saugus, California 91350, and that Talwar resides at 28360 Simsalido Avenue, Canyon Country, California 91387, and also at the Banuelo Avenue address. Plaintiff's records reflect that the Vehicle is located at one of those addresses. (Nunez Decl., ¶ 13.) The Court therefore finds probable cause to believe the Vehicle is located in a garage or other parking area at either address.

Fourth, Plaintiff declares that the Vehicle has not been taken for tax, assessment, or fine, nor taken under execution against Plaintiff's property. (Nunez Decl., ¶ 12; Application, item 8.)

Under section 512.060, a writ of possession may issue if Plaintiff establishes the probable validity of its claim to possession. Plaintiff's showing here meets that standard. The Contract, assignment, and title establish Plaintiff's secured interest in the Vehicle, United Global Logistics LLC defaulted on its payment obligations, and Plaintiff has demonstrated an immediate right to possession. The record therefore demonstrates that Plaintiff's claim to possession is probably valid.

Under section 515.010(b), if the Court finds that Defendants have no interest in the property, the Court shall waive the requirement of Plaintiff's undertaking and determine the amount of Defendants' undertaking. Nunez states that the Vehicle's average wholesale value is \$36,650.00 and its retail value is \$49,025.00, both of which are less than the \$84,164.43 owed under the Contract. (Nunez Decl., ¶¶ 9-10, Ex. C.) Because Defendants have no remaining equity interest in the Vehicle, Plaintiff is exempt from posting an undertaking.

Code of Civil Procedure section 515.020, subdivision (a),

permits Defendants to prevent Plaintiff from taking possession of the Vehicle or regain possession of the Vehicle by filing an undertaking in the amount determined by the Court under section 515.010(b). The Court determines that Defendants' undertaking shall be \$36,650.00.

Plaintiff has met all statutory prerequisites for issuance of a writ of possession under Code of Civil Procedure section 512.010 and has demonstrated the probable validity of its claim under section 512.060.

CONCLUSION

Plaintiff Ally Bank's Application for Writ of Possession is GRANTED.

The Court will sign Plaintiff's proposed order (CD-120) with corrections to the undertaking provisions.